

22STCV30091 22STCV30091

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV30091 Hearing Date: July 21, 2026 Dept: 1

Moving Party: Plaintiff Genice

Marie Horta (Greene Broillet & Wheeler LLP)

Responding Party: Defendant City of Los Angeles (Office of the City Attorney)

Ruling: Motion GRANTED in the reduced amount of \$92,696.37.

This

is a personal injury action. Plaintiff

Genice Marie Horta (Plaintiff) was severely injured by a dog named Maximus that she was about to transport from an animal shelter owned by the City of Los Angeles (City or Defendant) after she approached the dog with a drugged treat to sedate him for transport and he attacked her.

Plaintiff contended that Defendant was the legal owner of Maximus under the Dog Bite Statute, Civ. Code § 3342, such that Defendant was strictly liable for her injuries, as well as that Defendant negligently caused her injuries by failing to euthanize Maximus, failing to advise Plaintiff of Maximus's bite history, and failing to control Maximus in the moments leading up to and during the attack. Plaintiff served the following requests for admissions (RFAs) on Defendant, all of which Defendant denied without objection:

Request for Admission No.

1: "Admit that YOU owned the DOG on the day of the INCIDENT."

Request for Admission No.

10: "Admit that YOUR negligence caused the INCIDENT."

Request for Admission No.

11: "Admit that YOU are strictly liable for PLAINTIFF's injuries arising from the INCIDENT."

Request for Admission No.

26: "Admit that YOU were a substantial factor in bringing about injuries to PLAINTIFF."

Request for Admission No.

42: "Admit that at the time of the SUBJECT INCIDENT on September 23, 2020, YOU were the keeper of the DOG."

A

jury eventually found that Defendant was the owner of Maximus, that Defendant's employees were negligent, that their negligence was a substantial factor in causing harm to Plaintiff, and that the City was responsible for 62.5% of the harm. The Court entered judgment against the City for \$3,502,571.88 on March 13, 2026.

Plaintiff now moves to recover the costs of proving the denied admissions pursuant to Code Civ. Proc. § 2033.420.

LEGAL STANDARDS

Code

Civ. Proc. § 2033.420 provides:

(a) If a party fails to admit the genuineness of any document or the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves the genuineness of that document or the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the reasonable expenses incurred in making that proof, including reasonable attorney's fees.

(b) The court shall make this order unless it finds any of the following:

(1) An objection to the request was sustained or a response to it was waived under Section 2033.290.

(2) The admission sought
was of no substantial importance.

(3) The party failing to
make the admission had reasonable ground to believe that that party would
prevail on the matter.

(4) There was other good
reason for the failure to admit.

“The
determination of whether ‘there were no good reasons for the denial,’
whether the requested admission was ‘of substantial importance,’ and the amount
of expenses to be awarded, if any, are all within the sound discretion of the
trial court.” (Bloxham v. Saldinger (2014)
228 Cal.App.4th 729, 753, quoting Brooks v. American Broadcasting
Co. (1986) 179 Cal.App.3d 500, 508.)
“[E]xpert opinion evidence may provide a party with a reasonable ground
to believe it will prevail on a matter covered by an RFA.” (Orange County Water District v. The
Arnold Engineering Co. (2018) 31 Cal.App.5th 96, 116.) However, “there is no ‘per se rule that
reliance on an expert opinion provides a reasonable ground for a party to
believe he would prevail at trial.’” (Id.
at 117.) The burden of establishing
the exceptions under Code Civ. Proc. §2033.420(b), such as there being
reasonable ground to believe the denying party would prevail on the denial or
there being other good reason not to admit, is on the denying party. (Samsky v. State Farm Mutual Automobile
Ins. Co. (2019) 37 Cal.App.5th 517, 523-524 (Samsky).)

DISCUSSION

I.
OWNERSHIP OF THE DOG (RFAs 1, 11)

Request for Admission No.

1: “Admit that YOU owned the DOG on the day of the INCIDENT.”

...

Request for Admission No.

11: "Admit that YOU are strictly liable for PLAINTIFF's injuries arising from the INCIDENT."

On

April 19, 2024, Defendant served its responses to the requests for admissions in which it denied that it owned Maximus or that it was strictly liable for the injuries he inflicted on Plaintiff. (Plaintiff's Ex. 2, pp. 2, 4.) In response to Form Interrogatory 17.1, which requests all facts supporting the denial, Defendant stated that "The dog was owned by Heather Crowe[.]" the principal of HIT Living Foundation, who had hired Plaintiff to transport the dog. (Plaintiff's Ex. 3, pp. 10-11.) The jury found that Defendant was, in fact, the owner of the dog. (Plaintiff's Ex. 1 [Verdict Form], p. 2.)

As

the denying party, Defendant has the burden to establish it had reasonable grounds for denying ownership of the dog or that as owner it was strictly liable for Plaintiff's injuries. (Samsky, supra, 37 Cal.App.5th at 523-524.) Defendant identifies the following evidence supporting that it did not own the dog:

.
Ms. Crowe's understanding that she was the owner of Maximus at the time Plaintiff went to the shelter to pick him up (Hayes Decl., Ex. A [Crowe Depo.], p. 42);

.
The "Kennel Print Screen" dated the day before the injury in some way supported the denial;

.
The microchip information for Maximus listed Ms. Crowe as the owner (Hayes Decl., Ex. B [Humildad Depo.], p. 67); and

.
HIT and Ms. Crowe's payment of fees and efforts to arrange transport for Maximus.

Not

all these matters are in the record.

However, it appears undisputed that Ms. Crowe believed herself to be the owner and the microchip information listed her as the owner. While the jury did not, in the end, believe this evidence meant that the City did not own Maximus, the City did have a good reason for failing to admit it owned Maximus.

Plaintiff, for her part, appears to have abandoned this argument on reply. The Court will therefore deny the motion as to RFAs 1 and 11.

II.

CITY BEING A "SUBSTANTIAL FACTOR" IN CAUSING PLAINTIFF'S INJURIES (RFA 26)

Request for Admission No.

26: "Admit that YOU were a substantial factor in bringing about injuries to PLAINTIFF."

This

RFA requested Defendant to admit that it was "a substantial factor in bringing about injuries to PLAINTIFF." Defendant denied the request, and in its Form Interrogatory 17.1 response, stated that "[t]here is no negligence on the part of Defendant City. Plaintiff was given a warning on the nature of the dog." (Plaintiff's Ex. 3, p. 12.) Plaintiff contends here that there was no basis for Defendant to deny this request, because Plaintiff was not asking about negligence, but rather whether Defendant was a substantial factor in Plaintiff's injuries in some general, almost philosophical sense. "Substantial factor" is a well known standard used in negligence analysis, but outside that context it is a bit of an arcane and inscrutable term. Defendant understood Plaintiff to be asking a question about negligence, made that clear in its 17.1 response, and Plaintiff seemingly accepted that response and did not seek to compel a further response on the correct understanding. The reasonableness of this denial will therefore turn on whether Defendant was justified in denying its negligence.

III.

CITY BEING NEGLIGENT (RFA 10)

Request for Admission No.

10: "Admit that YOUR negligence caused the INCIDENT."

Defendant

denied this request, stating that "[t]here is no negligence on the part of Defendant City. Plaintiff was given a warning on the nature of the dog."

(Plaintiff's Ex. 3, p. 12.) The

jury found that the City's employees were negligent, and that negligence harmed Plaintiff. (See Plaintiff's Ex. 1, p.

2.) Specifically, the jury found the

City 62.5% responsible for the harm to Plaintiff. (Id., p. 5.)

Defendant

contends that it had a reasonable basis for denying this request because of the following:

The City contended that

Plaintiff was provided with warnings about Maximus and that Plaintiff's negligence was the cause of the dog-bite incident. Evidence supporting this contention included that before Plaintiff went to the City's shelter to pick up Maximus, she was informed by person(s) associated with HIT to "not put a treat in front of [Maximus'] face" and to "not get in front of this dog's face."

(Hayes Decl., Exh. A at 34:11-15, 34:21-24, 36:14-37:1.) At the animal shelter, prior to the incident, Plaintiff was informed by City employee Jose Humildad that "the dog is unpredictable," "shows signs of aggression" and "to use caution." (Hayes Decl., Exh. B at 26:9-16, 31:23-32:7.) Additionally, before the incident, the City employee "had [Maximus] on a pole so it should have been a pretty red flag right there right away that the dog is not to be trusted."

(Hayes Decl., Exh. B at 26:9-16.) "So [Plaintiff] was advised several times [before the incident] ... that the dog cannot be touched -- touched with or walked with a leash" and "that's why [the City employee] had [Maximus] on a pole." (Ibid.) Mr. Humildad also testified that prior to the incident, he "warned [Plaintiff] not to give anything to the dog" and "do not give the dog medication in a treat" and to "let [the City employee] just put the dog away in the crate that [Plaintiff] ha[d] in the vehicle." (Hayes Decl., Exh. B at, 38:18-39:3.)

Evidence also showed that

prior to the dog bite incident, the City had informed HIT that

Maximus had a bite history.

(Hayes Decl., Exh. A at 37:10-16.)

The dog bite incident

occurred when, despite the multiple warnings, Plaintiff put her hand near Maximus' snout to give him a treat with trazodone. (Hayes Decl., Exh. E at 161:11-15, 164:3-7, 164:13-15, 167:4-9, 170:24 - 171:10.)

(Opposition,
pp. 3-4.)

First,

Plaintiff is correct that the RFA was not asking whether the City's negligence was the sole cause of Plaintiff's injury, or whether Plaintiff or HIT was also negligent, but simply whether any negligence by the City caused Plaintiff's injuries. It would therefore only be reasonable for the City to deny the request if the information known to it would support a reasonable belief that a jury would find no negligence whatsoever. As Plaintiff details in reply, Defendant knew about and had possession of a surveillance video of the incident, depicting Defendant's employee Jose Humildad standing nonchalantly and not reacting as Plaintiff prepared the trazodone-filled treat to give Maximus and then approached the dog. The video depicted Mr. Humildad holding the control pole with only one hand and doing nothing to move the dog away from Plaintiff before she placed the treat in front of the dog's face and the dog attacked her. It was undisputed that Maximus had a history of biting people, and yet Defendant had not euthanized him. Even if Defendant were aware of what Mr. Humildad later claimed at deposition, that he had warned Plaintiff the dog was "unpredictable[.]" "had bitten the owner prior and another staff member[.]" "shows signs of aggression[.]" and "to use caution[.]" they cannot reasonably have believed that their failure to euthanize the dog and Mr. Humildad's failure to do anything as Plaintiff approached the dog would result in a finding of no negligence whatsoever. Defendant could not reasonably rely only on purported evidence favorable to it while ignoring substantial evidence that it was at least partly (and per the eventual verdict, mostly) at fault. Defendant's denial appears more a "roll of the dice" than a reasonable ground to think it would prevail in showing zero negligence. (See *Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 532.)

Because

it was not reasonable for Defendant to deny it was negligent, it was likewise not reasonable for Defendant to deny that it was a substantial factor in Plaintiff's injury (RFA 26), even if Defendant reasonably understood that request to refer to negligence.

IV.

CITY BEING MAXIMUS'S "KEEPER" (RFA 42)

Request for Admission No.

42: "Admit that at the time of the SUBJECT INCIDENT on September 23, 2020, YOU were the keeper of the DOG."

"Keeper"

in this request is not defined, and is vague in context. Plaintiff apparently intended the meaning used in *Menches v. Inglewood Humane Society* (1942) 51 Cal.App.2d 415, 417, though it is not defined there either.

Given that it was reasonable for Defendant to deny that it was the owner of the dog, it was even more reasonable for Defendant to deny it was the undefined "keeper" of the dog.

V.

SANCTIONS

Defendant

contends that the expenses available under Code Civ. Proc. § 2033.420 are limited to the expense of "making [the] proof" at trial of the truth of the matter requested to be admitted. (*Wagy v. Brown* (1994) 24 Cal.App.4th 1, 6 (*Wagy*).) Defendant's reliance on *Wagy* is overstated. *Wagy's* observation that "preparation for trial or arbitration is not the equivalent of proving the truth of a matter so as to authorize an award of attorney fees" under the costs-of-proof statute was made in a circumstance where on the eve of an arbitration, the defendants admitted negligence they had previously denied, making it unnecessary to prove the negligence in the proceeding. (*Id.* at 4.) Here, Defendant never admitted negligence, and Plaintiff did prove it at trial.

Plaintiff did not "merely prepare[] to" prove negligence (*Wagy*, *supra*, 24 Cal.App.4th at 6), but both prepared to prove it and then proved it. Under these

circumstances, the preparation was part and parcel of the proof.

The

record discloses the following:

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25.05 hours by Jenna Edzant (\$10,646.25) for depositions and motions in limine relating to issues in the denied RFAs;

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\$30,724.72 in expert fees and expenses for Dr. Dena Mangiamele, Plaintiff's expert in shelter operations;

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\$16,150.00 in attorney fees for Ivan Puchalt's work related to Dr. Mangiamele's testimony;

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\$7,650.00 in attorney fees for Mr. Puchalt related to the deposition and trial examination of Defendant's liability expert Kimberly Cherney;

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\$30,600.00 in attorney fees for Mr. Puchalt for the depositions and trial examinations of Defendant's employees Ashley Amezca, Jose Humildad, Jennifer Curiel, Veronica Perry, Sergio DeLeon, and Shawn Colon;

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\$7,225.00 for Mr. Puchalt to draft and edit motions in limine or oppositions to motions in limine; and

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\$8,075.00 in attorney fees for Ms. Edzant and \$3,825.00 in attorney fees for Mr. Puchalt for drafting and editing this motion.

Counsel's

requested rates are reasonable.

Plaintiff's counsel are personal injury lawyers, not deputy city attorneys, nor outside counsel to the City, and their rates are commensurate

with their level of experience and their work as personal injury attorneys in Los Angeles. The Court will award \$850 per hour for Mr. Puchalt and \$425 per hour for Ms. Edzant.

Plaintiff

is not entitled to the cost of making this motion, as the motion has nothing to do with the making of the proof at trial, and the statute does not contemplate an additional monetary sanction for the expense of making the motion. (Compare Code Civ. Proc. § 2033.420 [no monetary sanction provision relating to the motion] with Code Civ. Proc. §§ 2033.280 [monetary sanction for making motion to deem requests admitted], 2033.290 [monetary sanction for prevailing on motion to compel further responses].) “The primary purpose of requests for admissions is to set at rest triable issues so that they will not have to be tried; they are aimed at expediting trial. [Citation.] The basis for imposing sanctions under section 2034(c) is directly related to that purpose. Unlike other discovery sanctions, an award of expenses pursuant to section 2034(c) is not a penalty. Instead, it is designed to reimburse reasonable expenses incurred by a party in proving the truth of a requested admission where the admission sought was ‘of substantial importance’ [citations] such that trial would have been expedited or shortened if the request had been admitted.” (Brooks v. American Broadcasting Co. (1986) 179 Cal.App.3d 500, 509.)

The

rest of Plaintiff’s requested fees appear recoverable as fees and expenses reasonably expended to prove the negligence that Defendant denied. Defendant’s contention that many of the witnesses would have been deposed irrespective of the City’s denials does not follow, as much of the case turned on negligence and very little unique discovery was needed to prove Defendant’s strict liability for Plaintiff’s injuries. Although Plaintiff’s counsel do not break their hours down between the negligence issue (as to which Plaintiff is entitled to costs of proof) and the issue of ownership of the dog (which Defendant reasonably denied), it appears from the record that there was minimal discovery overlap, seemingly only the deposition of Mr. Humildad, and ownership took up very little time at trial.

The Court will therefore award \$102,995.97 in fees and costs, discounted by 10%, a total of \$92,696.37.

CONCLUSION

For

the foregoing reasons, the motion is GRANTED in the reduced amount of \$92,696.37. Plaintiff to give notice.